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Education Committee advances bill curtailing use of ultra-processed foods in California public schools

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SACRAMENTO — A landmark bill that bans unhealthy ultra-processed foods in public schools was approved unanimously by the California Senate Education Committee recently.

Assembly Bill 1264, introduced by Assemblymember Jesse Gabriel, directs the California Office of Environmental Health Hazard Assessment to define ultra-processed foods and identify particularly harmful ones to be phased out of public schools. The bipartisan legislation is co-sponsored by Consumer Reports and the Environmental Working Group and will now be considered by the Senate Environmental Quality Committee.

Recent research has linked diets that include a lot of ultra-processed foods — such as soft drinks and packaged snacks — to serious health risks, including cancer, cardiovascular disease and Type 2 diabetes. An estimated 67% of the calories in food eaten by children, according to a study published in JAMA in 2021, come from ultra-processed foods.

"Ultra-processed foods have little nutritional value and contribute to a whole host of chronic health conditions," said Michael Hansen, senior scientist at Consumer Reports. "Schools shouldn't be serving unhealthy ultra-processed foods engineered with chemicals that encourage overeating or that have been linked to serious health problems. This bill will protect California kids from particularly harmful ultra-processed foods and establish an important new food safety standard for the rest of the country."

The bill defines ultra-processed foods as those that contain one or more certain functional ingredients, including colors, flavors, sweeteners, emulsifiers and thickening agents. OEHHA would be required to identify ultra-processed foods considered particularly harmful based on whether peer-reviewed evidence has linked the substance to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity or Type 2 diabetes; whether the substance is hyper-palatable or may contribute to food addiction; and whether the food has been modified to be high in fat, sugar and salt.

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